BIG VALLEY MASTERS (PRIVATE) LIMITED

versus

THE PROVINCIAL MINING DIRECTOR, MIDLANDS PROVINCE N.O

and

WILSON MHURI

HIGH COURT OF ZIMBABWE
MUTEVEDZI J
BULAWAYO, 3 & 18 February 2025

Court application for review

B. Masamvu with *B. Mupatsi,* for the applicant
S. Jukwa, for the first respondent
S. Chamunorwa, for the second respondent

MUTEVEDZI J: Banter has often been thrown around that when one is wearing borrowed robes and is sitting in the sun, the owner of the robes has the right to instruct the borrower to move into the shade! If that can happen, then it is certainly taboo for the borrower to lend out the clothes to another. The same social concept has been developed into a legal rule. It is impermissible for one to delegate powers that would have been delegated to him/her. Under the Mines and Minerals Act [Chapter 21:05] (the Act), the official who wields judicial authority to determine mining disputes is the Mining Commissioner. A Provincial Mining Director is not a mining commissioner. When he/she presides over mining disputes, he/she does so by virtue of powers delegated to him by the Secretary of Mines. As I will demonstrate later in this judgment, it must follow that he/she cannot in turn sub-delegate such authority to another official. This court application for the review of the proceedings and determination of the Provincial Mining Director, Midlands Province in terms of ss 26 and 27 of the High Court Act [Chapter 7:06] (the High Court Act) rendered on 17 July 2025 typifies the challenges I outlined above.

The parties and factual background

1. The applicant is a corporation called Big Valley Masters (Pvt) Ltd (hereinafter "the applicant".) In 1999, the applicant registered a mining claim described as Skyrocket 2 Mine registration number 16955. Since then, it has not only been in possession of the mining

location but has also been lawfully conducting mining activities thereat. The first respondent is the Provincial Mining Director (PMD) for the Midlands Province. He is cited in the application in his official capacity as the official who heard and determined the boundary dispute which is the subject of this application. The second respondent is Wilson Mhuri, an individual who apparently also has interest in another mining block called Surprise 459 which shares a boundary with Skyrocket 2 Mine.

2. When the applicant and the second respondent's interests clashed at the mining block in dispute, the applicant directed a complaint to the first respondent on 17 June 2025. It alleged that the second respondent had encroached onto its mining location. The first respondent conducted an inquiry into the complaint. On 17 July 2025, he then made what he purported to be a determination on the matter. In it, the first respondent confirmed the ground position of the second respondent's Surprise 459 Mining Claim. He directed the applicant to revert to the position of Skyrocket 2 Mine as it existed at registration. In other words, the first respondent did not find any fault with the position of the second respondent's mining claim. Instead, he found that the applicant had moved its original pegs resulting in the conflict between the parties. My view however, is that this application turns on considerations other than the above findings.

The applicant's case

3. The applicant was aggrieved by the decision of the first respondent as stated above. It approached this court with an application for the review of the PMD's determination. The applicant's major contention was that the determination was made in the absence of a proper hearing. It further alleged that the PMD did not only disregard verified coordinates and maps but that he acted with bias which made his findings grossly irregular. It prayed for the setting aside of the determination and the remittal of the matter for a hearing *denovo*.
4. In support of its application, the applicant chronicled that sometime in June 2025, it noticed that the second respondent was conducting mining surveys in its [applicant's] mining location. The applicant said it attempted to engage the second respondent but the overtures were unsuccessful. That led to the filing of the complaint with the first respondent as already stated. When he received the complaint, the PMD summonsed the parties to his

offices. At the gathering, the parties were advised by the PMD's officials that the meeting was an exercise for preliminary inquiries to enable them to understand the nature of the dispute. In fact, the applicant said the PMD himself did not attend the meeting. Documents, so the applicant's story continued, were only sought from the applicant. The second respondent was not asked to produce any. There was also some site visit which the applicant alleged that the PMD equally did not attend. Even worse was that the PMD's assignees did not conduct any physical examination on the ground. In spite of all the documented indiscretions, the applicant said it was astounded when it later received a determination in respect of the dispute from the first respondent which prompted it to raise the current challenge.

Respondents' case

The first respondent

5. In his opposing affidavit, the first respondent conceded that he had delegated his officers to preside over the hearing. He argued that a hearing was conducted and to prove it, he attached minutes of the hearing, the consent to the hearing signed by all the parties and copies of the attendance register showing who had been present in the hearing. He maintained that on the ground the applicant was "lost" in respect of positioning and had encroached on to the second respondent's mining claim.

The second respondent

6. The second respondent raised a number of preliminary objections. He said the application had, by operation of r 15(22) of the High Court Rules, 2021 (the Rules) been deemed abandoned for want of proper service on the first respondent. Further, the first respondent contended that the applicant had no right to file the present application because it had not been a party to the determination made by the second respondent regarding the dispute. The point was taken on the basis that the party which had appeared before the PMD was an entity called Big Valley Masters **Holdings** (Pvt) Ltd and not Big Valley Masters (Pvt) Ltd. He also argued that because of developments which had occurred after the filing of the application, the dispute between the parties had become moot. Lastly, he took the objection that the applicant had failed to disclose to the court, material facts.

7. I turn to deal with each of the objections in *limine.*

That the application is deemed abandoned

8. *Mr Chamunorwa* for the second respondent argued that the application is deemed abandoned by operation of law. As already pointed out, he based his argument on the interpretation and application of r 15(22) of the Rules which provides that if service of any process has been effected by electronic mail, proof of such service shall be by copy of the mail in question showing the date and time of delivery. He said in this case, the applicant had only furnished a return of service showing the date and time of delivery but did not attach **the copy** of the mail. For that reason, and in terms of r 58(15) of the Rules, so the argument persisted, the application is deemed abandoned. R 58(15) provides that where, for any reason, proof of service is not filed with the Registrar in the manner and time specified, the application shall be deemed to be abandoned **and** the Registrar shall accordingly notify the parties.
9. Mr *Masamvu* for the applicant conceded that indeed the applicant had not attached the mail in question to the return of service. He however said that there was substantial compliance with the provision in question and that there had been completely no prejudice to the second respondent. He moved the court to invoke r 7 (a) and condone the applicant for the non-compliance. R 7 (a) provides as follows: -

> ***7. Departure from rules***
> The court or a judge may, in relation to any particular case before it or him or her, as the case may be—
> (*a*) direct, authorise or condone a departure from any provision of these rules, including an extension of any period specified therein, where it or he or she, as the case may be, is satisfied that the departure is required in the interest of justice;

10. Mr *Chamunorwa* countered that argument by alleging that the Court could not invoke r7 (a) because what was before it was a nullity. But in my view, that contention was beside the point. The application before me is not defective in any way. What is problematic is that there is an incomplete return of service.
11. There is nothing magical about a return of service. Its primary function is to serve as prima facie proof that the legal process it speaks to was properly delivered to the party which it identifies as the recipient. Service of court process is intended to bring it to the attention of the other party. Where service was effected but in an improper manner, it must be shown

that there was prejudice to the other party or that the process was not received. As stated in the case of *Cletus Chikwuka Anueyiangu v Chief Immigration Officer and Others* SC 15-13, the condonation of a departure from the rules is a discretion reposed in the court. The courts have consistently empahsised the discretionary nature of condonation and that it requires a holistic assessment of the litigant who seeks condonation's conduct and the merits of the case. It is usually refused where non- compliance was a flagrant disregard of the rules. In the instant case, the applicant was candid. It accepted the omission and sought condonation. Its explanation was that the non-attachment of the mail was simply an oversight. I do not think there can be any argument about that. A litigant who does everything which ought to have been done in proving service but then omits to attach the mail cannot be said to be disdainful of the rules. The respondents were served with the application. They fully responded to it. In fact, counsel for the second respondent admitted in court that he raised the point at the eleventh hour because he also had not realised that the mail had not been attached. That the respondent could also overlook the omission supports the applicant's case of oversight. Clearly, the second respondent did not suffer any prejudice from the applicant's failure to attach a copy of the mail.

12. Rule 58(15) which the second respondent sought to rely on is in two parts. The first is that where service has not been properly done, the application shall be deemed abandoned. The second part is where that happens, the registrar must inform the parties. The first part is joined to the second by the conjunctive word 'and.' It necessarily means that both segments of the rule must be fulfilled for the abandonment to be complete. Where the registrar has not communicated the abandonment of the matter to the parties, the matter may as well remain live. In any case, the question of abandonment of a matter is a factual one. Where parties are actively engaged in prosecuting the matter, that issue cannot arise. A matter which has been progressed by all those involved up to the time that it is set for hearing can barely be described as abandoned. R 58(15) intended to redress the mischief of litigants who left their matters unprosecuted for inordinate periods. It did not necessarily aim to punish those, as in this case, who made sincere mistakes in filing their returns of service. The point I drive home is that where service was improperly effected, a case is not automatically abandoned. The registrar must communicate that fact to the parties. Where

he/she doesn't do so, the court retains the discretion, on application and demonstration of good cause by the defaulting party, to condone such party's non-compliance. In my view, it can only be in the interests of justice that in the instant case, I condone the omission by the applicant to attach the mail to demonstrate service. The failure to attach the mail was nothing more than an inadvertence on the part of the applicant. There was absolutely no prejudice suffered by the second respondent who received the application and properly responded to it. The objection seems to have been taken for the sake of it. Accordingly, it is dismissed.

That the dispute is moot.

13. The second respondent also argued that the applicant had, after filing the application, subsequently sold the mining claim in dispute to an entity called *Zhong Cheng* (Pvt) Resources, a fact which the applicant once more admitted to. Mr *Masamvu* was however quick to insist that the sale did not make the application academic in any way. The applicant's view was that, as could be seen from the certificate of transfer, the coordinates of Skyrocket 2 Mine were not endorsed thereon. The reason for that was because of the existence of the dispute in question which remained live. He said the sale itself was dependent on the resolution of the matter before the court. He referred me to the case of *Khuphe & Anor* v *Parliament of Zimbabwe & Ors* CC20-19 and urged me to determine the dispute even if it were to be held to be moot because the interests of justice demanded so.

The law on mootness

In *Khuphe & Anor* v *Parliament of Zimbabwe & Ors* (supra), MALABA CJ aptly observed that:

> "A court may decline to exercise its jurisdiction over a matter because of the occurrence of events outside the record which terminate the controversy. The position of the law is that if the dispute becomes academic by reason of changed circumstances the court's jurisdiction ceases and the case becomes moot."

14. HIS LORDSHIP further empahsised that:

> "The question of mootness is an important issue that the Court must take into account when faced with a dispute between parties. It is incumbent upon the Court to determine whether an application before it still presents a live dispute as between the parties. The question of mootness of a dispute has featured repeatedly in this and other jurisdictions. The position of the law is that a court hearing a matter will not readily accept an invitation to adjudicate on issues which are of "such a nature that the decision sought will have no practical effect or result".

15. The same principle was adopted in the South African case of *National Coalition for Gay and Lesbian Equality and Others* v *Minister of Home Affairs* 2000 (2) SA 1 (CC), at footnote 18 to para 21 where it was held that: -

> "A case is moot and therefore not justiciable if it no longer presents an existing or live controversy which should exist if the Court is to avoid giving advisory opinions on abstract propositions of law. Such was the case in *J T Publishing (Pty) Ltd and Another* v *Minister of Safety and Security and Others* [1996] ZACC 23; 1997 (3) SA 514 (CC) (1996 (12) BCLR 1599), where DIDCOTT J said the following at para [17]:
>
> > '(T)here can hardly be a clearer instance of issues that are wholly academic, of issues exciting no interest but an historical one, than those on which our ruling is wanted have now become.'"

16. There is little doubt if any therefore, that a court may properly decline to exercise its jurisdiction in a matter which has become moot. The fact that the applicant has already disposed of the mining claim in dispute makes the dispute between and amongst the parties moot. Yet the law is equally clear that whether or not to determine a moot case, is the discretion of a court. That discretion is guided by clear factors. In *Zimbabwe School Examinations Council* v *Mukomeka & Anor* SC10-20 the Supreme Court prescribed a two-stage inquiry into the question of mootness. It said:

> "I have already adverted to the two-stage inquiry relating to the question of mootness. As was underscored in *Khupe's* case, *supra*, at p. 13, the mere fact that a matter is moot as between the parties concerned does not *per se* render it unjusticiable. The next step in the analysis is to decide whether or not the court should exercise its discretion to hear the case. In that respect, courts are guided by the rationale and policy considerations underlying the doctrine of mootness – *Borowski's* case, *supra*. "

17. As I understand it, the overriding consideration is whether or not it is in the interests of justice to hear a moot case. The same approach was adopted by the Constitutional Court of South Africa in the case of *Independent Electoral Commission* v *Langeberg Municipality* 2001 (3) SA 925 (CC) where at para 11 it decided that:

> "This Court has a discretion to decide issues on appeal even if they no longer present existing or live controversies. That discretion must be exercised according to what the interests of justice require. A prerequisite for the exercise of the discretion is that any order which this Court may make will have some practical effect either on the parties or on others. Other factors that may be relevant will include the nature and extent of the practical effect that any possible order might have, the importance of the issue, its complexity, and the fullness or otherwise of the argument advanced." (My emphasis)

18. An additional factor that may arise for consideration is whether the effect of declining to authoritatively adjudicate a moot issue would create a situation "capable of repetition, yet evading review". In *Khupe's* case, *supra*, at p. 17 it was noted that:

> "Where a matter is of such a nature that it might keep arising in the Court or where there is need to resolve a serious legal question, the Court may exercise its discretion to hear the moot issue by reason of its significance, as it would in such circumstances be in the interests of justice to make a determination on the issue."

19. In the celebrated case of *Roe* v *Wade* 410 US 113 (1973) at 125, the United States Federal Supreme Court held that:

> "Our law should not be that rigid. Pregnancy often comes more than once to the same woman, and in the general population, if man is to survive, it will always be with us. Pregnancy provides a classic justification for a conclusion of non-mootness. It truly could be 'capable of repetition, yet evading review'."

20. *In casu*, it is common cause that the applicant sold the property in issue to a third party. However, the applicant has raised the issue that the transfer of ownership is not yet final as demonstrated by the missing coordinates on the certificate of transfer. Those coordinates are affected by the determination of this dispute. It is not an idle argument that the purchaser may resile from the contract of sale if it turns out that the applicant sold it property to which it did not have title. In the same breadth, the second respondent will equally be allowed to make a claim against either the purchaser or the applicant or both, if it ultimately turns out that the mining location sold or any part thereof actually belonged to it. If that is the case, [which it is], the determination of the dispute remains of some practical interest to all the parties involved.
21. In addition, it is not an overstatement that applications for review fueled by challenges of determinations by Provincial Mining Directors abound in the courts. Hardly a day passes without a mining related matter being filed. This, in my view, is therefore an important matter whose determination may have practical effects on many other similarly placed litigants. The chances that such disputes will keep recurring but evading review are very high. For these reasons, I therefore dismiss the objection and choose to exercise my discretion in favour of hearing the seemingly moot case.

The material non-disclosure and that the applicant's locus standi

22. The second respondent further submitted that the applicant owes the Court a duty of candour. He said the applicant deliberately failed to disclose material information. He referred the Court to a number of authorities, whose ratios are that a litigant who withholds material information from the court is non-suited to be heard. The authorities included *Nehanda Housing Co-operative Society & Ors* v *Moyo & Ors* HH987-15 and *Graspeak Investments P/L* v *Delta Operations P/L & Anor* 2001 (2) ZLR 551 (H). To the second respondent, the applicant did not disclose that it had not filed any complaint with the first respondent because, in his view, the complaint filed on 17 June 2025 was initiated by a company called Big Valley Masters Holdings (Pvt) Ltd and the determination by the first respondent related to that entity. The second respondent further contended that the urgent chamber application under case number HCBC831-25 and the appeal under case number HCBC786-25 were both filed by Big Valley Masters Holdings (Pvt) Ltd and not the applicant. He urged the court to dismiss the application on the basis of both the non-disclosure ad that the applicant could not possibly have made the application to contest a decision to which it had not been a party. Put differently, the argument was that the applicant had not appeared before the first respondent at the hearing. As such, Big Valley Masters Holdings (Pvt) Ltd instead of Big Valley Masters (Pvt) Ltd (the applicant) ought to have instituted this suit.
23. In its response, the applicant admitted that because of the interrelatedness of Big Valley Masters Holdings (Pvt) Ltd and Big Valley Masters (Pvt) Ltd with the former being the holding company of the latter, an error had been made in the filing of case numbers HCBC786-25 and HCBC831-25. It said when the error was noted, both those cases had been withdrawn and are no longer pending before the courts. They both could not therefore have any bearing on the current application. Mr *Masamvu* further said that it was disingenuous for the second respondent to argue that the complaint was not made by the applicant although the determination was later erroneously addressed to Big Valley

Masters Holdings (Pvt) Ltd. That error by the PMD did not affect Big Valley Masters Holdings (Pvt) Ltd but the applicant.

24. In analysis, it must be noted that the decision to withdraw a matter is a unilateral one except in few specified circumstances. When a matter is successfully withdrawn from the courts, very little may be accrued from referencing it because in essence, there is no matter before the courts. I agree that it may be disingenuous of the second respondent to attempt to hold on to a mistake which the applicant has clearly explained. Once it noted the mistakes, the applicant withdrew its claims. The matter ended there.
25. It is equally pretentious for the second respondent to argue that it was Big Valleys Masters Holdings (Pvt) Ltd which raised the complaint which led to the hearing before the first respondent on 17 June 2025. The very first paragraph of the letter of complaint puts that argument to rest. It read that: -

> "We write to formally lodge a complaint on behalf of **Big Valley Masters (Private) Ltd (BVM)** concerning a matter**…"**

26. As can be seen, the bolding in the above excerpt was the applicant's. There can be no doubt therefore that the entity which lodged the complaint with the PMD was the applicant in this matter. It is admitted that the letter was on a Big Valley Masters Holdings (Pvt) Ltd letter head but that to me did not change anything. A letter head, simply serves to emphasize the brand identity of a corporation. It does not serve to identify a complainant in a dispute. It is the reason why complaints written on unbranded papers do not lose their value as such. To put the argument to rest, I noted that right at the end of the letter, the author once again indicated that he was acting on behalf of Big Valley Masters (Pvt) Ltd. Nothing more could be needed to demonstrate who the complainant was in that case.
27. Despite all the above evidence as to the identity of the complainant, the PMD addressed his determination, to Big Valley Masters Holdings (Pvt) Ltd but in the body of the decision, he constantly referred to the applicant. That the PMD made such errors is not something that can be attributed to the applicant. As it contended, it was the complainant. The decision affected it and not its sister company. In the end the PMD's indiscretions cannot be used to bar the applicant for impugning a determination which it genuinely believes is prejudicial to its interests. The approach by the first respondent may be explainable on the basis of issues which I will discuss elsewhere in the judgment.

28. For the above reasons the objections regarding non-disclosure and the applicant's locus in the matter cannot succeed. They are accordingly dismissed.

The merits

29. On the merits, the applicant argued that the first respondent's determination was, in more ways than one, afflicted with gross procedural irregularities. The first was that the PMD grossly erred when he sub-delegated his powers to officers working under him. It said the PMD did not preside over the hearing but surprisingly made the determination. The applicant further argued that the PMD was biased and that the bias is typified by his addressing the determination to an entity which had not appeared before him.
30. In response, counsel for the first respondent, did not dispute that the PMD did not preside over the hearing. He did not also contest the allegation that it was the PMD who ultimately made the determination. Unsurprisingly, the second respondent would not go down without a fight. He cried more than the bereaved. Without indicating whether or not he held a brief for the first respondent, counsel spiritedly argued that the PMD had conducted a summary hearing in terms of s 345 of the Mines and Minerals Act [*Chapter 21:*05] (hereinafter "the Act"). He added that once the applicant signed the consent form accepting that the hearing be held before the PMD, he had bound himself to any decision made thereafter. He further argued that the applicant had been given an opportunity to make representations which it did. To the second respondent, there was therefore no anomaly in the way the hearing was conducted.

The law

31. In this jurisdiction, mining disputes are resolved in accordance with the provision of the Act which prescribes the persons with authority to determine mining disputes. S 345 of the Act reads as follows: -

> **345 Jurisdiction of High Court and mining commissioners**
> (1) Except where otherwise provided in this Act, or except where **both the complainant and defendant have agreed in writing** that the complaint or dispute shall be investigated and decided by the mining commissioner in the first instance, the High Court shall have and exercise original jurisdiction in every civil matter, complaint or dispute arising under this Act and if in the course of any proceeding and if it appears expedient and necessary to the Court to

> refer any matter to a mining commissioner for investigation and report, the Court may make an order to that effect.
> (2) Where the parties have agreed in writing, as provided for in subsection (1), the mining commissioner shall, in the investigation and the decision of the complaint or dispute, be guided by sections *three hundred and forty-six* to *three hundred and sixty.*
>
> (3) The mining commissioner, before whom any claim, dispute or proceeding is brought, shall hear and determine such claim, dispute or proceeding **in the manner set forth in this Act** and shall be and is hereby empowered to give and make all such orders, directions, judgments or decrees, and do or cause to be done all such things, as may be necessary to give effect to his decision in respect of such claim, dispute or proceeding: (bolding is my emphasis)

32. As is clear, the only authority which has original jurisdiction in all disputes of a mining nature is the High Court. A Mining Commissioner may only assume jurisdiction where both a complainant and a defendant have agreed that he or she does so. Even where the parties have so consented to his or her jurisdiction, the Mining Commissioner is not given carte blanche. He is obliged to determine the dispute in accordance with the method set out in the Act. This Court has, in a long line of cases, repeatedly stated that a Provincial Mining Director is not a mining commissioner. See for instance the cases of *Gombe Resources (Pvt) Ltd* v *Provincial Mining Director, Mashonaland Central* HH–405–18; *Pahasha Somalia Mining Syndicate* v *Earthrow Investments (Pvt) Ltd and Others* HH-450–21; *Barrington Resources (Pvt) Ltd* v *Pulserate Investments (Pvt) Ltd and Others* HH–446–23; and *Sandawana Mines (Pvt) Ltd* v *Ndlovu N.O. and Anor* HH–537–23

32. If it needed confirmation, that holding got the Supreme Court's seal of approval in the case of *StoneZim Granite (Private) Limited* v *The Provincial Mining Director Mashonaland East & Anor* SC01-24. In that decision, the Supreme Court also held that the Secretary of Mines may lawfully assume the functions of a mining commissioner which he may in turn delegate to Provincial Mining Directors because the Act clothes him with the same powers as a Mining Commissioner. As such, when PMDs preside over mining disputes, they do so, not as Mining Commissioners, but by virtue of the powers delegated to them by the Secretary of Mines where he will have assumed the functions of a mining commissioner. In putting that point across I can do no better than restate the Supreme Court's position in *StoneZim* (supra) at p. 22 of the cyclostyled judgment where it held that: -

> "Notably, a mining commissioner, acting mining commissioner or assistant mining commissioner does not necessarily delegate to another mining commissioner but to another officer, the powers or duties vested in him. The provisions of s 344(1) lead to the inescapable conclusion that if a mining

> commissioner, acting mining commissioner or assistant mining commissioner may delegate any of the powers or duties vested in him by the Act, then the Secretary may also do the same in terms of s 341(2). **The only difference would be that the Secretary would not need to seek consent since the power to consent to delegation is already vested in him.** Thus, put simply, if a mining commissioner can delegate his powers and duties, so can the Secretary because they are vested with the same powers by the Act. Needless to say, the officer on whom the powers or duties vested by the Act in a mining commissioner may be delegated is not specific but generalised." (Bolding is my emphasis).

33. The biggest take away from the above is that the PMD's power to preside over disputes is delegated power. It is borrowed. That is indisputable. In *Stonezim,* the Supreme Court reaffirmed the age-old principle that delegated power cannot be delegated. Even if a PMD were a mining commissioner, the constraint is that the law expressly provides that for him or her to delegate his or her power the requirement is that there must be the express consent of the Secretary for Mines.
34. In the instant case, the determination complained of was made by the PMD. Ordinarily, he would have ridden on the delegated power framework described above. But nothing was ordinary in this case. As admitted by the PMD, he did not personally preside over the hearing. Instead, he did so by proxy. Once he chose that route, he could not make the determination himself. No one can be a judge in a case which they did not hear. I mentioned earlier that the Mining Commissioner is bound by the procedures which are set out in the Act. Some of those considerations appear in s 346 which provides that: -

> **346 Judicial powers of mining commissioners**
> (1) …
> (2) A mining commission **shall** hear and determine, in the simplest, speediest and cheapest manner possible, all actions, suits, claims, demands, disputes and questions arising within his jurisdiction, as set forth in section *three hundred and forty-five*, and make such orders as to costs as he may deem just.
> (3) For the purpose of such hearing a mining commissioner **shall examine witnesses on oath,** which oath he is hereby empowered to administer, and take down the evidence in writing to be signed by the person giving the same, and do all things which he may deem necessary for a proper decision. (Bolding is for emphasis).

35. The above puts it beyond doubt that the PMD cannot choose to conduct a hearing through a surrogate. He/she has to be not only present in the hearing but is required to steer it and to thereafter, make a determination. The PMD in this case did not. The second respondent further took the argument that the committee which was chaired by a person called Hove appointed by the PMD did not conduct a hearing but were simply investigating the matter. That to me is neither here nor there, because even if they were investigating, the net result is that the PMD ultimately made a determination without conducting a hearing as envisaged

by the Act. In any case, that argument was not supported by the minutes compiled by Hove himself and presented to the court by the second respondent. The minutes, clearly indicated that what took place was a hearing before Hove and his committee. I have already said even if it were to be argued that Hove had been delegated authority by the Secretary to preside over the dispute, a major constraint remained that it was not Hove but the PMD who then made the determination.

36. I also pause here to make another critical observation arising from the submissions by the second respondent that the hearing was conducted in a summary manner in terms of in terms of s 348 of the Act which provides that:

> "**348 Summary hearing of complaints**
> Notwithstanding requirements of sections *three hundred and forty-five* and *three hundred and forty-six*, the mining commissioner may, if the parties concerned consent thereto in writing and are both present at the hearing, hear and determine any such complaint as above mentioned, summarily, and without any formal proceedings taken before him.
> A minute of the decision shall be made by him in a register of complaints in which shall be entered every complaint laid before him, together with particulars thereof." (my underlining for emphasis).

37. The summary procedure under s 348 does not advocate for a violation of basic principles of a fair hearing. It neither contemplates the substitution of a designated presiding officer with another who has no authority to do so nor does it envisage the making of a determination by an official who was far removed from the proceedings. By summary hearing is meant a truncated way of hearing complaints usually where the issues are largely common cause or where there is little disagreement on very narrow issues. The procedure is intended to expedite the hearing of complaints. The parties to the dispute are both required to be present at such summary hearing. The PMD must personally hear and determine the complaint. He may not delegate his responsibilities to another person. He is still proscribed from plucking a determination from the air without having been present at the summary hearing. I have no doubt that the errors which appear in the determination such as addressing it to a party which had not complained in the first place and interchangeably referring to the correct party in one breadth and a wrong one in another directly stemmed from a lack of appreciation of what had taken place at the hearing. It is the reason why the law doesn't allow the making of a determination by an officer who did not participate in the hearing.

Disposition

38. For the above reasons, I find that the so- called hearing was a nullity. The procedure adopted deviated so far, from accepted methods of determining complaints even in instances where the law allows the presiding officer greater flexibility in the conduct of the proceedings. The irregularity complained of negatively impacts the very root of a fair hearing. I cannot therefore allow the decision to stand.
39. I remain alive to the other grounds raised by the applicant in his quest to have the determination overturned. I however choose to adopt the course specified by the Supreme Court in the case of *Longman Zimbabwe (Pvt) Ltd v Midzi & Ors* 2008 (1) ZLR 198 (S), that it is proper for a court to decide only one of many issues raised by a party when such issue is capable of disposing of all the contestations between the parties. For instance, here, there is nothing that can be gained from examining whether or not the PMD was biased in his determination because I have already held that there was no hearing that was conducted. For the same reason, there is equally no benefit that can be derived from determining whether or not the ground survey was properly conducted. If there was no hearing it means that anything and everything that flowed from it was a nullity.
40. I am convinced that the applicant managed to demonstrate, on a balance of probabilities, that the hearing was plagued with gross procedural irregularities as already stated. The application must accordingly succeed.

Costs

41. The rule is that costs follow the cause. I have not been motivated to depart from it. There is therefore no reason why I should not mulct the second respondent with costs.
42. In the result, I order as follows:
    - **i. The application be and is hereby granted**
    - **ii. The decision of the first respondent dated 17 July 2025 in a mining dispute between the applicant and the second respondent be and is hereby set aside in its entirety.**
    - **iii. The dispute be and is hereby remitted for a determination de novo, in full observance of the guidelines given in this judgment, before a different mining commissioner or such other officer as may be lawfully delegated by the Secretary of Mines.**

iv. The second respondent shall pay the applicant's costs of suit

MUTEVEDZI J……..

Masamvu & Da Silva-Gustavo Law Chambers, applicant's legal practitioners

Civil Division of the Attorney General's Office, 1st respondent's legal practitioners

Calderwood, Bryce Hendrie and Partners, 2nd respondent's legal practitioners